



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 6816 (EXTENSION)
FOURTH REVISION January 22, 1985

In accordance with 49 CFR 107.109 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 6816 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.109. This extension constitutes a necessary part of this exemption and must be attached to it.

for Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

4/28/97
(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

U.S. Department of Defense
Falls Church, VA

August 2, 1996

Hughes Missile Systems Company
Tucson, AZ

March 25, 1997

Application date
10/05/98
- Raytheon Missile



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DOT-E 6816
(FOURTH REVISION)

1. U.S. Department of Defense, Washington, D.C., is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of certain military weapons for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipments of completely assembled liquid and solid fueled missiles and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

McDonnell Astronautics Co., (MDAC), St. Louis, MO - PTE-1.
General Dynamics Corp. (GDC), San Diego, CA - PTE-2.

2. BASIS. This exemption is based on Military Traffic Management Command's application dated November 21, 1983, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon; supplemented by letter dated January 3, 1985. The granting of party status is based on the following application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

MDAC's application dated August 3, 1983.
GDC's application dated November 30, 1983.

3. HAZARDOUS MATERIALS (Descriptor and class). Harpoon missile and Tomahawk missile which meet the definition of rocket ammunition as described in §173.53(p) except that each missile is equipped with a combustible liquid fuel and a turbo-jet engine in addition to the solid propellant explosive; Bulldog Missile (AGM 83-A) in an "all up" configuration, classed as Class A explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). Rocket ammunition with explosive projectile.

5. REGULATION AFFECTED. 49 CFR 173.53(p).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel for the Harpoon missile and Tomahawk missile; motor vehicle only, for the Bulldog Missile.

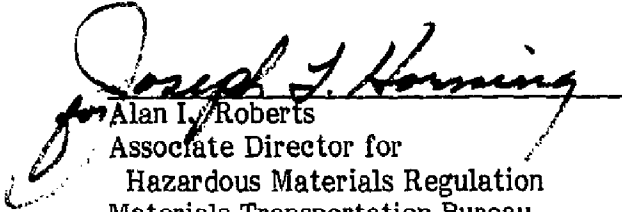
7. SAFETY CONTROL MEASURES. Packaging prescribed as in 49 CFR 173.57(a). Bulldog Missile (AGM 83-A) may be transported by motor vehicle only.

8. SPECIAL PROVISIONS. A copy of this exemption must be carried aboard each motor vehicle and vessel used to transport packages covered by this exemption. Also, for shipment by rail, a copy of this exemption must accompany the shipping papers.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. September 30, 1985.

Issued at Washington, D.C.:


for Alan I. Roberts

Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

JAN 22 1985

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions
Branch.

Dist: FHWA, FRA, USCG.